

Janet T. Mills
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Commissioner



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Safety Device(s) Request Form

Instructions:

- Please complete form in its entirety before submission
- Please submit form to OADS.Behavioralhealth@maine.gov
- If you do not see a specific device listed in Appendix A, please submit the form as a Level 2 Safety Device

Member Information

Member Legal Name:	Date of Birth:
Evergreen# (If known):	MaineCare #:
Member Address:	
Legal Guardian(s) (if any):	Member/Legal Guardian Contact Information:
Case Manager:	Case Mgr. Email Address:

Program Details

Service/Waiver Program Name(s) and Address:	
Service/Waiver Program Contact(s):	Service/Waiver Program Contact Numbers(s) :
Service/Waiver Program Contact Email Address(s):	

Medical Provider Information

Medical Provider's Name (Must be DO, MD, PA, NP):

Safety Devices

Medical Provider's Recommendation(s):

As the Medical provider for the above-named person, I recommend the following Safety Devices:

Name and Type of Safety Device	Purpose of the Safety Device	When will the device be used	Safety Device Level	Provider Date & Signature

If Additional fields are necessary, please complete Appendix B

Complete the following questions:

1. What strategies that are less restrictive/intrusive than the Safety Device(s) listed above have been tried previously to ensure the safety of the person but did not work for the person:

2. How will the effectiveness of the safety device be regularly evaluated and documented, and how frequently will the documented evaluation information be reviewed by the Team?

3. If any safety device impacts the rights of other persons in the home or program, identify accommodations used to minimize the impact on other such persons.

Date Planning Team met to discuss and approve the Safety Devices recommended by the Medical Provider:

Member/Guardian (if any) Approval

As the Member or legal guardian (if any) I approve the use of the Safety Device(s) that are recommended by the licensed physician and approved by the Team.

Signature:

Date:

It is the provider's responsibility to consult the regulations to ensure compliance with safety device request and usage of such. Regulations can be found at <https://www.maine.gov/sos/cec/rules/14/197/197c005.docx>

Requirements for plan to be reviewed

- Safety Device Request Form completed
- Planning Team meeting notes that discuss safety devices must be in Evergreen and must include the meeting date
- If safety device involves video monitoring/recording in which it is predictable that another member will trigger or appear on the device, an HCBS modification must be submitted and approved

Appendix A: Safety Device Levels

Device	Level
A one-piece suit to prevent the person from pulling out an ostomy bag or interfering with similar medically necessary procedures, equipment, or apparel;	1
Short term use of hand splints or gloves when used for medical safety such as pulling at stitches	1
A seat belt on a wheelchair when used to prevent the person from falling out of the wheelchair;	1
A seat belt on a wheelchair when used to prevent the person from getting out of the wheelchair because the person has a history of falling or being unsteady;	1
A seat belt on a toilet when used to prevent the person from getting off the toilet when the person has a history of falling off the toilet or getting off the toilet and being unsteady;	1
Foot straps on a wheelchair when used to prevent the person's feet from dragging or getting caught;	1
A diver's belt in a bathtub when used to prevent the person from floating while being bathed;	1
A chest strap while on the toilet when used to prevent the person from falling off the toilet;	1
A belt on a chair, including a shower chair or a Hoyer lift, when used to keep the person from falling or slipping out of the chair or lift;	1
Any bed rail that substantially inhibits the person from rising off of or getting out of the bed when the person has a history of unintentionally falling; must meet current bed rail safety/size regulations	1
A gait belt for a person, when used to assist the person with walking or transfers and the person has a history of unsteadiness or falls; Must have a documented medical reason	1
Medical device anyone would use as per doctors orders	1
A one-piece suit for behavioral issues such as fecal smearing	2

Device	Level
A locked cupboard or locked refrigerator when the locking is implemented for the purpose of keeping a person with uncontrollable eating impulses from dangerous eating habits. This procedure must be supported by a medical diagnosis of a related disability, such as pica or Prader-Willi syndrome;	2
Hand splints or gloves when used to prevent pica or other behavioral issues	2
A helmet used solely for safety purposes, for instance to protect a person who has a history of falling because of seizures. See also Section 5.10-7;	2
Helmet - self-injurious behavior	2
Monitoring devices that do not limit the Person's movement when used to monitor the movement of a Person due to lack of environmental awareness or history of unintentional falling. Examples of these devices include a sound monitor that picks up sounds in the vicinity of the person and transmits those sounds to staff, a chair alarm, a bed alarm, an ankle bracelet, a door alarm or light (including infrared light).	2
Safety Gate	2
Specialized equipment	2
Buckle Buddy	2
Car Divider	2

Appendix B (Additional Space for Safety Devices)

Medical Provider's Recommendation(s):

As the Medical provider for the above-named person, I recommend the following Safety Devices:

Name and Type of Safety Device	Purpose of the Safety Device	When will the device be used	Safety Device Level	Provider Date & Signature